

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR SEPTEMBER 4, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, SEPTEMBER 4, 2026 at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, SEPTEMBER 3, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: PARTIES MAY REQUEST A REMOTE APPEARANCE FOR ORAL ARGUMENT. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0084706 PAGAYA AI DEBT SELECT GRANT v. FLORY, SARAH

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Plaintiff's Motion for Entering Judgment

The motion is denied. Plaintiff has not made a sufficient showing that the parties entered into a settlement agreement in this instance. The declaration of Spencer Penuela states that the parties entered into a settlement agreement on December 15, 2023. However, there is no signature of the plaintiff appearing on the settlement agreement. It is also noted that defendant's signature has no electronic authorization to verify it is defendant's signature. It is further noted that that Penuela declaration refers to the filing of a Notice of Settlement of Entire Action. The court file does not reflect any such notice was ever filed with the court. Moreover, defendant filed an answer on August 31, 2026, which asserts – among other things – the statute of limitations bars the claim. For these reasons, the motion is denied.

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2. M-CV-0085555 JPMORGAN CHASE v. HENNING, JACOB

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff's Motion to Enter Judgment Pursuant to Stipulation

The unopposed motion is granted as prayed. (Code of Civil Procedure section 664.6.)

Judgment is entered against defendant Jacob Henning in the amount of \$11,437.60,
which includes the principal balance of \$11,812.60 less \$375.00 in credits.

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3. M-CV-0086654 BANK OF AMERICA v. SINGH, AMANPREET

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Plaintiff's Motion to Vacate Dismissal and Enter Judgment

Ruling on Request for Judicial Notice

Plaintiff's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Motion

The unopposed motion is granted as prayed. (Code of Civil Procedure section 664.6.)

The dismissal entered on July 15, 2024 is vacated.

Judgment is entered against defendant Amanpreet Singh in the amount of \$3,486.15, which includes the principal amount of \$3,107.54 plus costs of \$378.61.

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4. M-CV-0087555 PHILADELPHIA INDEM INS CO v. LEWIS, DEANN

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendants Jennifer Flippen-Black and Justin Black's Motion for Distribution of Interpleaded Bond Funds

Ruling on Request for Judicial Notice

Defendants' request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Motion

The unopposed motion is granted as prayed. The court incorporates by reference the findings and orders in the proposed order lodged with the court on July 21, 2026.

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5. M-CV-0088965 PORTFOLIO RECOVERY ASSO v. ROMERO, ARVIN

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff's Motion to Vacate Dismissal and Enter Judgment

Ruling on Request for Judicial Notice

Plaintiff's request is granted pursuant to Evidence Code section 452.

Ruling on Motion

The motion is granted as prayed. (Code of Civil Procedure section 664.6.)

The dismissal entered on May 2, 2025 is vacated.

Judgment is entered against defendant Arvin Romero in the amount of \$4,493.61,
which includes principal of \$3,890.00 plus costs of \$603.61.

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6. M-CV-0095458 JPMORGAN CHASE v. PERRY, HEATHER

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Plaintiff's Motion to Vacate Dismissal and Enter Judgment

Ruling on Request for Judicial Notice

The request is granted pursuant to Evidence Code section 452.

Ruling on Motion

The motion is granted as prayed. (Code of Civil Procedure section 664.6.)

The dismissal entered on June 9, 2026 is vacated.

Judgment is entered against defendant Heather Perry in the amount of \$6,635.93.

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7. M-CV-0098367 MERCY HOUSING CA 99 v. SMITH, LAURA

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant Laura Smith's Motion to Set Aside Default and Default Judgment

The appearances of the parties are required for the hearing.

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8. M-CV-0098466 BUSHEHRI, FAHIMEH v. HULTMAN, ADAM

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant's Ex Parte Application for Stay of Execution

The matter is dropped as moot. The eviction proceeded on August 25, 2026.

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9. S-CV-0048518 THERAPUTIC HERBAL CO v. VINCENT MARKETING SERV

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

James L. Arrasmith Esq.'s Motion to be Relieved as Counsel for Plaintiffs Christopher Cornellier and Theraputic Herbal Company, LLC

The unopposed motion is granted as prayed.

James L. Arrasmith, Esq. shall be relieved as counsel of record for plaintiffs Christopher Cornellier and Theraputic Herbal Company, LLC upon the filing of the proof of service of the signed order after hearing on plaintiffs.

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10. S-CV-0049554 OLSEN, ERIK v. COOPER, CRAIG

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiffs' Motion to Compel Responses to Requests for Production of Documents

The motion is continued to September 18, 2026 at 8:30 a.m. in Department 1 so the parties can participate in the informal discovery conference currently set for September 9, 2026.

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11. S-CV-0049847 SORENSON, SVEN v. ASHER, RAYMOND

Defendant's Motion for Reconsideration

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**. Appearance of the parties is required on **September 8, 2026 at 8:30 a.m. in Department 32**. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

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12. S-CV-0051395 PASQUINELLI, RONALD v. RIELE, CASEY

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendants' Motion for Order to Compel Plaintiff's Submission to Neuropsychological Examination

The motion is granted. (Code of Civil Procedure section 2032.320(d).)

Plaintiff Ronald Pasquinelli shall appear on October 13, 2026 from 9:30 a.m. to 5:00 p.m. at the Regus Stockton, 2453 Grand Canal Boulevard 1st and 2d Floor, Stockton, California 95207 before Sharon Perlman Berry, Psy.D. for a neuropsychological evaluation. The evaluation shall be limited in the following manner and/or subject to the following conditions:

- 1.) The examination shall not be longer than seven (7) hours in length. This limitation does not include break periods or lunch periods.
- 2.) The examination shall only include the diagnostic testing as identified below:

ACS Word Memory Test	PASAT
b Test	Rey Fifteen Item Test
Beck Anxiety Inventory & Beck Depression Inventory	Rey-Osterrieth Complex Figure Test (RCFT)
Booklet Category Test	Ruff 2 & 7 Selective Attention Test
Boston Naming Test	Ruff Figural Fluency Test (RFFT)
COWAT (FAS and Animal Naming)	Ruff Neurobehavioral Inventory (RNBI)
Dot Counting Test	Ruff-Light Trail Learning Test (RULIT)
Finger Tapping Test	Stroop Test
Green Word Memory Test (WMT)	Test of Learning and Memory (TOMAL)
Grooved Pegboard Test	Test of Memory Malingering (TOMM)
Millon Clinical Multiaxial Inventory IV (MCMI-IV)	Test of Premorbid Functioning (TOPF)
Minnesota Multiphasic Personality Inventory-3 (MMPI-3)	Trail Making Test Parts A & B
Neuropsychological Assessment Battery (NAB)	Wechsler Adult Scales of Intelligence, Fifth Edition (WAIS-5)
Repeatable Battery for the Assessment of Neuropsychological Status (RBANS)	Wechsler Memory Scales, Fourth Edition (WMS-IV)
Rey Auditory Verbal Learning Tests (RAVLT)	Wisconsin Card Sorting Test (WCST)

- 3.) The examination shall be audio recorded and made available to plaintiff's counsel.
- 4.) The examiner's written report will be made available to plaintiff's counsel.
- 5.) The raw data shall be preserved and made available to plaintiff's counsel.
- 6.) All discoverable material from the examination shall be preserved and maintained during the pendency of the litigation.

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**13. S-CV-0051463 LINCOLN HILLS ADV ALLIANCE v. SUN CITY
LINCOLN HILLS COMM ASSO**

This tentative ruling is issued by the **Honorable Angus Saint-Evens**. If oral argument is requested, it will be heard on **September 4, 2026 at 8:30 a.m. in Department 20**.

Motion for Stay

Defendant moves to stay trial court proceedings including enforcement of judgment pursuant to Code of Civil Procedure section 916. Plaintiff opposes the motion.

Plaintiff's request for judicial notice is granted.

Unless an enumerated exception applies, "the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a).) "Unless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is for any of the following: (1) Money or the payment of money," or (2) and (3) costs in certain instances. (Code Civ. Proc., § 917.1, subd. (a).) "A money judgment 'must be stated with certainty and should specify the amount.' [Citation.]" (*Estate of Kampen* (2011) 201 Cal.App.4th 971, 986.) Here, while the first amended complaint prays for relief including "all funds collected should be returned to the rightful owners that paid those funds," no specific dollar amount is prayed for and no dollar amount is included in the May 6, 2026 judgment. Accordingly, the exception in Code of Civil Procedure section 917.1 does not apply.

Plaintiff argues that Code of Civil Procedure section 917.2 applies, which provides enforcement of judgment is not stayed if the judgment "directs the assignment or delivery of personal property," as money is "personal property." However, the judgment does not include any findings that defendant holds these funds, only that it wrongfully took them. Accordingly, the exception in Code of Civil Procedure section 917.2 does not apply.

Plaintiff argues that Code of Civil Procedure section 917.9 applies, which provides enforcement of judgment is not stayed if the trial court in its discretion requires an undertaking and "(1) appellant was found to possess money or property belonging to

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respondent; [or] (2) appellant is required to perform an act for respondent's benefit pursuant to the judgment[.]" Here, however, the judgment pertains to the wrongful collection of fees from individuals who are not parties to this action, so it cannot be said that appellant was found to possess money belonging "to respondent" or that the judgment requires appellant to perform an act for "respondent's" benefit. Accordingly, the exception in Code of Civil Procedure section 917.9 does not apply.

Based on the foregoing, it appears to this court that the automatic stay of enforcement of judgment pursuant to Code of Civil Procedure section 916 is already in place without any applicable exception. The motion is, accordingly, granted.

The **review hearing scheduled for December 1, 2026 is hereby vacated** pending appeal.

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14. S-CV-0051737 FRAIDENBURGH, RYAN v. QUAIL RIDGE APTS

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant All In One Pest Control, Inc.'s Motion to Compel Discovery Responses

The motion is dropped from the calendar. Defendant filed a notice of withdrawal of motion on September 1, 2026.

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15. S-CV-0051945 WARNER, SAM v. AUBURN RACQUET CLUB

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Petition for Approval of Minor's Compromise as to Sam Warner

The petition is granted as prayed.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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16. S-CV-0053899 GILBERT, SEAN v. MAGALLANES, EMILANO

The reserved hearing for the motion to be relieved as counsel is dropped from the calendar as no moving papers were filed with the court.

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17. S-CV-0054566 TAYLOR, DAVID v. PLACER COUNTY RECORDER OFFICE

Defendant's Demurrer to Complaint

The appearances of the parties are required for the hearing.

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18. S-CV-0055435 JACOBS, ADAM v. AMEEN, NIRAN

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff's Amended Motions to Compel Discovery

The appearances of the parties are required for the hearing.

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19. S-CV-0055515 HENSCHEL, MATTHEW v. HENGL, KEVIN

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendants Kevin Hengl and Richard Hengl's Motion to Quash Plaintiffs Matthew Henschel and Lindsay Henschel's Deposition Subpoena as to Third Party Morgan Clark or Morgan Clark Designs (MCD1, Inc.) and Sanctions

The motion is granted.

The deposition subpoena issued to third party Morgan Clark or Morgan Clark Designs (MCD1, Inc.) on February 5, 2026 by plaintiffs is quashed in its entirety.

Sanctions in the amount of \$3,260.00 are imposed upon plaintiffs Matthew Henschel, Lindsay Henschel, and plaintiff's counsel, jointly and severally.

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20. S-CV-0055627 PETERSON, KATHY v. ROLLER KING ROSEVILLE

The reserved hearing on the motion to compel deposition is dropped from the calendar as no moving papers were filed with the court.

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21. S-CV-0055827 PANDU, RAGHAVENDRA v. VULLI, MADHAVI

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant's Demurrer to the First Amended Complaint (FAC)

The appearances of the parties are required for the hearing.

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22. S-CV-0056384 BANKS, CAMERON v. GENERAL MOTORS

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses

The motion is granted. In the current request, plaintiffs seek \$16,527.50 in attorneys' fees, a multiplier of 0.5 for an additional \$8,263.75, and \$2,157.75 in costs pursuant to Civil Code section 1794(d). The buyer who prevails under the Song-Beverly Act - colloquially referred to as a "lemon law" case - is statutorily entitled to attorney's fees and costs. (Civil Code section 1794(d); *Pulliam v HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 405-406.) The prevailing party has the burden of showing the requested fees and costs were reasonably incurred, reasonably necessary, and reasonable in amount. (*Ibid.*) The reasonableness of any attorney's fees award begins with the lodestar calculation, i.e. the actual time spent and the reasonable hourly compensation for the attorney. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135; *Pulliam, id.* at p. 406.)

The court has carefully considered the number of hours expended by counsel along with the hourly rates for comparable work within Placer County and awards \$12,422.50 broken down as follows:

NAME	RATE	HOURS	TOTAL
Sepehr Daghighian	\$425/hr	12.1	\$ 5,142.50
Michael Rosenstein	\$425/hr	2.2	\$ 935.00
Miguel Ortiz	\$375/hr	1.8	\$ 675.00
Jim Martinez	\$350/hr	16.2	\$ 5,670.00
TOTAL		32.3	\$12,422.50

The court has carefully considered the issues presented in the case; the nature and extent the litigation precluded other employment for counsel; and the contingent nature of any fee award and declines to apply either a positive or negative multiplier. (*Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 247-248.)

The court has carefully considered the costs and finds them to be reasonable.

In sum, the motion is granted. Plaintiff is awarded \$12,422.50 in attorneys' fees and \$2,157.75 in costs.

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23. S-CV-0056514 KAMMERER, FRED v. S & B JAMES CONST MGMT

**NOTE: If oral argument is requested in this case, it shall be heard on
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Plaintiff's Motion for Trial Preference

The appearances of the parties are required for the hearing.

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24. S-CV-0057299 FALLAHI-MARZOONI, KEYAN v. SPARE TIME
INDOOR TENNIS INVEST

**NOTE: If oral argument is requested in this case, it shall be heard on
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Plaintiff's Motion for Preliminary Injunction

The appearances of the parties are required for the hearing.

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25. S-CV-0057349 BERNES, JEFFREY v. FCA US

The reserved hearing on the motion for sanctions is dropped from the calendar as no moving papers were filed with the court.

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26. S-CV-0057505 IRPO GRAJO CAUSING, MARIA

**NOTE: If oral argument is requested in this case, it shall be heard on
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Petition for Approval of Minor's Compromise as to Enzo Causing

The petition is denied without prejudice. Petitioner has not sufficiently shown why the funds should not be placed in a blocked account for the minor child or why distribution to petitioner is a proper disposition.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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27. S-CV-0057509 IRPO GRAJO CAUSING, MARIA

NOTE: If oral argument is requested in this case, it shall be heard on SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Petition for Approval of Minor's Compromise as to Bentley Causing

The petition is denied without prejudice. Petitioner has not sufficiently shown why the funds should not be placed in a blocked account for the minor child or why distribution to petitioner is a proper disposition.

If oral argument is requested, the appearance of the minor at the hearing is waived.

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28. S-CV-0057824 AWASTHI, ANSHUMAN v. KIA CORP

**NOTE: If oral argument is requested in this case, it shall be heard on
SEPTEMBER 4, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Specially Appearing Defendant Kia Corporation's Motion to Quash Service of
Summons

The appearances of the parties are required for the hearing.

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